

Comprehensive Research Report on United Arab Emirates Labor Jurisprudence, Dispute Resolution Procedures, and Wage Protection Systems

1. Constitutional and Statutory Foundations of the UAE Labor Relations Framework

The employment landscape of the United Arab Emirates private sector is regulated by a centralized federal framework designed to balance the rights and obligations of employers and workers.¹ The foundational pillar of this regime is Federal Decree-Law No. 33 of 2021 Regarding the Regulation of Employment Relationships, which repealed the previous Federal Law No. 8 of 1980.¹ This framework was updated by successive legislative amendments, notably Federal Decree-Law No. 20 of 2023 and Federal Decree-Law No. 9 of 2024, alongside its executive regulations promulgated under Cabinet Resolution No. 1 of 2022.¹ These legislative instruments standardize private labor practices across the mainland, ensuring alignment with international conventions and modernizing the workforce dynamics of the state.¹ The jurisdictional scope of Federal Decree-Law No. 33 of 2021 encompasses all establishments, employers, and workers operating within the private sector across the UAE mainland and most of its free zones.¹ Explicitly excluded from this framework are employees of federal and local government entities, members of the armed forces, police, and security services, and domestic workers.³ Domestic workers are instead governed by a dedicated legislative regime under Federal Decree-Law No. 9 of 2022 and Administrative Resolution No. 11 of 2023.¹¹ Financial free zones, specifically the Dubai International Financial Centre (DIFC) and the Abu Dhabi Global Market (ADGM), fall outside this federal legislation, administering their own independent employment laws and judicial tribunals.¹³

Legislative Instrument	Regulated Scope & Key Function	Verified Official Source Link
Federal Decree-Law No. 33 of 2021	The foundational private sector labor law regulating contracts, wages, termination, and employee	(https://uaelegislation.gov.ae/en/legislations/1541/download) ¹⁰

	rights. ¹	
Cabinet Resolution No. 1 of 2022	The executive regulations detailing the implementation of FDL No. 33 of 2021, work permits, and employment models. ⁶	(https://uaelegislation.gov.ae/en/legislations/1547/download) ⁶
Federal Decree-Law No. 33 of 2021 (with Amendments)	Consolidated text of the Private Sector Labor Law reflecting the 2023 and 2024 amendments. ³	(https://dubai hires.com/wp-content/uploads/2025/01/Federal-Decree-Law-No.-33-of-2021-Regarding-the-Regulation-of-Employment-Relationship-and-its-amendments-1.pdf) ³
Federal Labor Standards Reference Guide	Detailed compliance guidelines, including standardized terms, leave rules, and end-of-service gratuity calculations. ¹⁶	(https://dda.gov.ae/-/media/218BD60807934D8F888B472B2FDB78E7.pdf) ¹⁶
ILO UAE Labor Law Brief (Revised May 2024)	Comprehensive analysis of the state's aligned standards, minimum wage guidelines, and international treaties. ⁸	(https://www.ilo.org/sites/default/files/2024-05/UAE_Brief_Revised%20%28May%202024%29.pdf) ⁸
United Arab Emirates Legislation Registry Portal	The federal portal hosting executive texts, ministerial resolutions, and standard employment templates. ¹⁷	(https://assets.u.ae/api/public/content/eb65a60bbff949fa912eddd566613014?v=7174ed78) ¹⁷
Worker Welfare in the United Arab Emirates	Official MOFAIC policy publication detailing national strategies for labor welfare and human rights compliance. ¹⁸	(https://www.mofaic.gov.ae/api/features/OpenData/Download?id={29D1BB4F-0CC7-4C2D-9F27-595CFE0D372F}&Name=Worker+Welfare+in+the+UAE+) ¹⁸
Country Fact Sheets: UAE Private Labor Sector	Joint publication by the ILO and DLA Piper mapping out	(https://static1.squarespace.com/static/5aa2d2d8297114

	standard contracts, visas, and recruitment regulations. ¹⁴	1ff9a61ea5/t/5d67c0d3e0d479000199f267/1567080665024/Country-Fact-Sheets_UAE.pdf) ¹⁴
The Legal 500: Private Sector Labor Law Guide	Comprehensive legal manual mapping statutory terminations, employer obligations, and administrative penalties. ¹⁹	https://www.legal500.com/guides/chapter/uae-employment-and-labour-law/?export-pdf) ¹⁹
Morgan Lewis: Global Employment & Labor Law (2022)	Legal handbook summarizing mainland workplace standards, data privacy, and early-stage dispute structures. ²⁰	https://www.morganlewis.com/-/media/files/special-topics/gtdt/2022/getting-the-deal-through-labour-employment-2022-uae.pdf) ²⁰
Morgan Lewis: Global Employment & Labor Law (2023)	Updated legal guide addressing discrimination protections, harassment bans, and regional free zone tribunals. ¹⁵	https://www.morganlewis.com/%22/-/media/files/special-topics/gtdt/2023/getting-the-deal-through-labour-employment-2023-uae.pdf) ¹⁵
K&L Gates: Practical Private Sector Employer Guide	Corporate guide outlining UAE visa programs, golden/green visa benefits, and compliance during employee transitions. ²¹	https://files.klgates.com/webfiles/UAE_Employer_Guide.pdf) ²¹
Administrative Resolution No. 11 of 2023	Procedures manual governing the recruitment and contracting of the domestic helper workforce. ¹¹	https://gulfmigration.grc.net/wp-content/uploads/2023/07/Administrative-Resolution-No.-11-of-2023.pdf) ¹¹
Bilateral India-UAE Manpower Cooperation MoU	Standardized international agreement detailing recruitment verifications and joint portal linkages. ²²	https://www.mea.gov.in/images/amb1/India_UAE_MoU.pdf) ²²

Contractual Standardization and Modern Employment Models

Under the current legislative regime, unlimited-term employment contracts are prohibited.¹ All

active labor relationships in the private sector must be governed by fixed-term contracts.¹ While initial iterations of the law capped these agreements at a maximum of three years, subsequent statutory modifications removed the hard cap, allowing parties to agree on any defined duration, which may be renewed or extended indefinitely by mutual consent.¹ This transition addresses legacy compliance vulnerabilities, replacing the previous framework's indefinite liabilities with defined, reviewable terms that match standard business cycles.¹

The executive regulations provide operational flexibility by codifying six distinct employment patterns¹:

- **Full-Time:** Working for a single employer for the complete daily designated working hours.⁶
- **Part-Time:** Working for one or more employers for a specified number of hours or days.⁴
- **Temporary Work:** Executing a project or task that concludes within a designated timeframe.⁴
- **Flexible Work:** Adjusting working hours or days based on the operational volumes and variables of the employer.⁴
- **Remote Work:** Performing tasks entirely or partially outside the physical workplace via electronic communication links.⁶
- **Shared Work:** Dividing the duties of a single position among multiple workers, with wages and benefits pro-rated accordingly.⁶

Statutory Protections and Non-Discrimination Mandates

The labor regime enforces strict equal protection principles.³ Discrimination is prohibited on the basis of race, color, sex, religion, nationality, social origin, or disability.³ This framework specifically prohibits gender-based pay disparity, mandating that women must receive equal compensation to men if they perform the same work or work of equal value.³ Furthermore, employers are barred from practicing discriminatory dismissals against female employees due to pregnancy or maternity.²⁰ Workplace harassment, sexual harassment, bullying, and the use of physical, psychological, or verbal violence against employees by supervisors or co-workers are strictly prohibited.⁴ Forced labor is similarly banned; employers cannot coerce workers into executing tasks against their will or utilize threats of penalties to enforce labor.⁴

Probationary Periods and Notice Allocations

The statutory regulations govern the initiation and termination of employment relationships, particularly during the probationary phase⁵:

- **Duration:** The probation period is capped at a maximum of six months and can only be served once per employment relationship.⁵
- **Employer-Initiated Termination:** Employers seeking to terminate a worker during probation must serve a minimum of 14 days' written notice.⁵
- **Employee-Initiated Transfer:** If a worker wishes to resign during probation to join another employer registered within the UAE, they must provide a minimum of one month's (30 days) written notice.⁵ Under these circumstances, the new employer is legally

obligated to compensate the original employer for recruitment and onboarding expenses unless agreed otherwise.⁵

- **Employee-Initiated Departure:** If a worker intends to terminate employment during probation to depart the country, they must serve a minimum of 14 days' written notice.⁵ Should they return to the UAE and obtain a new work permit within three months of departure, the new employer is liable to compensate the original employer for the prior recruitment costs.¹⁶

Calculations for End-of-Service Gratuity

Full-time foreign workers who have completed one or more years of continuous service are entitled to an end-of-service gratuity calculated on their basic wage.⁴ This basic wage excludes all allowances, bonuses, and in-kind benefits.³ The statutory formulas for calculating end-of-service benefits are structured as follows:

For workers with continuous service of one to five years, the entitlement is calculated at a rate of 21 days of basic wage for each year of service⁴:

$$\text{Gratuity}_{\leq 5} = \text{Basic Wage} \times \left(\frac{21}{365} \right) \times \text{Days of Service}$$

For workers whose service exceeds five years, the entitlement is calculated at 21 days of basic wage per year for the first five years, plus 30 days of basic wage for each subsequent year⁴:

$$\text{Gratuity}_{> 5} = \text{left} + \text{left}$$

The total accrued gratuity is legally capped and must not exceed the equivalent of two years' basic wage.¹

For part-time workers, the calculation is pro-rated based on the actual hours worked.⁵ The total working hours per year are converted into equivalent standard working days, where one working day equals eight working hours²⁴:

$$\text{Equivalent Working Days} = \frac{\text{Total Annual Hours Worked}}{8}$$

This figure is subsequently divided by the standard working days of a full-time calendar year to establish the pro-rated fraction applied to the standard gratuity calculation.²⁴

2. The 2026 Wage Protection System (WPS) Paradigm and Compliance Enforcement

The payment of wages within the UAE private sector is monitored through the Wage Protection System (WPS), a digital transfer network operated jointly by the Ministry of Human Resources and Emiratisation (MOHRE) and the Central Bank of the UAE.²⁵ Effective June 1, 2026, the regulatory framework governing wage payments was overhauled by Ministerial Resolution No.

340 of 2026 Concerning the Wage Protection System, which repealed the previous Ministerial Decision No. 598 of 2022.²⁸ This updated resolution standardizes payroll timelines, raises compliance thresholds, and introduces an automated enforcement system.²⁶

The Unified Payday and Compliance Thresholds

Under Ministerial Resolution No. 340 of 2026, the regulatory structure mandates a single, unified payday for the entire mainland private sector.²⁸ Wages for any preceding Gregorian month must be disbursed through the WPS no later than the first day of the subsequent Gregorian month.²⁸ Any transfer occurring after the first day of the month is classified as a statutory delay.²⁶ This rule removes the previous 15-day grace period that existed under the prior regime.²⁶

Compliance Parameter	Previous Rule (MD No. 598 of 2022)	Current 2026 Rule (MD No. 340 of 2026)
Salary Payment Due Date	Flexible due dates based on contract agreements ²⁸	First day of each Gregorian month ²⁸
Grace Period	15 days before penalties initiated ²⁶	Zero days (delay logged on Day 2 of the month) ²⁶
Establishment Compliance Threshold	Minimum 80% of total wages transferred ²⁷	Minimum 85% of total wages transferred ²⁸
Individual Worker Compliance Threshold	Treated as paid if at least 80% received ²⁸	Treated as paid if at least 85% received ²⁸

The 85% individual threshold accounts for lawful deductions made in accordance with Article 25 of Federal Decree-Law No. 33 of 2021 (such as loan repayments or recovery of property damage).²⁸ However, this threshold functions purely as a systemic compliance flag; workers retain their legal right to claim the remaining 15% of their contractually agreed salary if the deduction was not backed by a valid statutory reason.³⁰

The 21-Day Penalty Escalation Ladder

The monitoring software at MOHRE automatically tracks payroll submissions.²⁶ When an establishment falls below the 85% transfer threshold after the first of the month, the system triggers the following progressive penalties³⁰:

- **Day 2 (Immediate Post-Deadline):** The electronic system identifies the delay. Automated SMS alerts and email warnings are dispatched to the establishment owners.³⁰
- **Day 5:** The system suspends the establishment's ability to obtain new work permits.³⁰ All

pending and future hire applications are blocked.³⁰

- **Day 11:** Formal administrative fines are levied in accordance with Cabinet Resolution No. 21 of 2020.³⁰ Additionally, the establishment is reclassified into the "Third Category" (the lowest operational tier, which carries significantly higher transaction fees) if it has committed repeated violations within a six-month period.³⁰
- **Day 16:** The MOHRE system automatically registers labor dispute files on behalf of the unpaid workers, initiating regulatory intervention without requiring individual filings.³⁰
- **Day 21:** The enforcement actions escalate to severe corporate and personal restrictions.³⁰ This includes placing a precautionary attachment on the employer's funds, issuing travel bans against the establishment's managers, and referring the file to the Public Prosecution for criminal non-compliance.²⁰

Employers are permitted under Article 5 of the resolution to delegate their payroll execution to third-party entities, such as Professional Employer Organizations (PEOs) or payroll providers, provided the delegation contract and the delegate's details are registered with MOHRE.³⁰

However, the primary establishment remains fully liable; any operational failure by the third-party provider triggers the penalty ladder against the employer, not the delegate.²⁶

Statutory Exemptions from the WPS

Specific worker categories and commercial operations are excluded from the WPS requirements²⁷:

- Seafarers and crew members employed on maritime ships.³⁰
- Fishing boats and transport vessels owned by UAE nationals.²⁷
- Licensed commercial banks operating in the state.²⁷
- Registered places of worship and religious institutions.²⁷
- Short-term mission or temporary workers whose contract duration is under 30 days.³⁰
- Workers whose liberties are restricted by judicial orders or criminal detentions.³¹

3. Administrative Labor Dispute Filing and Mediation Procedures

When a labor dispute arises regarding unpaid wages, termination, or contract violations, mainland private-sector workers must first utilize the administrative dispute resolution mechanisms managed by MOHRE.¹³ Direct recourse to the judicial system is legally barred; any lawsuit filed without first completing the MOHRE administrative process will be dismissed by the court.¹³

The operational parameters of the dispute resolution process are codified under Administrative Resolution No. 25 of 2022 Concerning the Procedures Manual Regulating Labor Disputes and Complaints.³⁴ This resolution establishes standard workflows for individual claims, collective disputes (involving 100 or more workers), and work abandonment reports.³⁴

Parameter	Individual Labor Complaint	Collective Labor Complaint	Work Abandonment Report (Absconding)
Applicable Legislation	Resolution No. 25 of 2022 (Sec. 1). ³⁵	Resolution No. 25 of 2022 (Sec. 2). ³⁵	Resolution No. 25 of 2022 (Sec. 3). ³⁵
Filing Threshold	Single worker filing against one employer. ³⁵	Minimum of 100 affected workers. ³⁴	Employer reporting an absent worker. ³⁵
Filing Window	Within 2 years of contract termination. ²	Within 30 days of the collective breach. ³⁶	After 7 consecutive days of absence. ³⁴
Filing Fee	Fully free of charge. ¹³	Fully free of charge. ³⁴	Employer covers processing fines. ³⁴
Required Representatives	Self-represented or proxy. ³³	3 to 5 chosen representatives. ³⁴	Registered establishment signatory. ³⁴
MOHRE Action	Remote telephone or video mediation. ¹³	Site inspection and fact-finding report. ³⁴	Automatic cancellation of work permit. ³⁴
Resolution Limit	Maximum of 14 working days. ³³	Maximum of 30 days. ³⁴	Handled upon submission of proof. ³⁴
Next Step if Failed	Binding Decision ($\leq$ AED 50K) or Court NOC. ³⁸	Referred to the Conciliation Committee. ³⁴	Employer funds repatriation costs. ¹¹

The Administrative Filing and Mediation Workflow

The administrative filing and resolution process follows a strict regulatory timeline:



1. **Submission:** The complainant provides personal details, the employer's establishment card number, their labor card number, and selects the type of breach (such as unpaid salary or arbitrary dismissal).³⁸ The official procedures manual is available directly at(<https://gulfmigration.grc.net/wp-content/uploads/2023/01/Resolution-No.25-Of-2022-Concerning-The-Procedures-Manual-Regulating-Labor-Disputes-And-Complaints.pdf>).³⁴ For verification of compliance history, the database entry can be accessed at(<https://gulfmigration.grc.net/uae-administrative-resolution-25-Of-2022-related-to-labor-disputes-and-complaints/?print=pdf>).³⁵
2. **Mediation:** Upon registration, MOHRE assigns a neutral legal mediator.¹³ Mediation sessions are conducted remotely via video or telephone conference.¹³ The mediator

evaluates the contract, bank statements, and WPS logs.³⁸

3. **Resolution:**

- **Amicable Settlement:** If an agreement is reached, the mediator drafts a formal settlement agreement.³³ Once signed by both parties, this document becomes legally binding and is enforceable through the courts' enforcement divisions.¹³
 - **Disagreement on Claims $\leq$ AED 50,000:** If mediation fails and the total claim value is equal to or less than AED 50,000 (or if there is a breach of a prior MOHRE settlement), MOHRE is empowered to issue a final, legally binding decision.³⁸ This decision is issued as a writ of execution.³⁸ Either party may appeal this administrative decision directly to the Court of First Instance within 15 working days of issuance.²
 - **Disagreement on Claims $>$ AED 50,000:** If the dispute remains unresolved and the claim value exceeds AED 50,000, MOHRE terminates mediation and issues a formal No Objection Certificate (NOC) and referral letter.³⁸
4. **Court Registration Deadline:** Following the issuance of the MOHRE referral letter, the worker must register their lawsuit with the competent Labor Court within 14 calendar days.³⁸ Failure to register the court file within this window voids the referral, requiring the worker to restart the administrative process.³⁸

Temporary Work Permits during Disputes

While an active labor dispute is pending in the mediation or court phase, workers are prohibited from working for a new employer without authorization.³⁶ To ensure workers can earn a livelihood during litigation, MOHRE allows them to apply for a temporary work permit.¹² This permit is valid for six months, renewable, and is granted without the original employer's consent.¹² To qualify, the worker must have a valid MOHRE referral letter or a pending court case file number.¹² Once the final court judgment is issued, the worker must cancel their original work permit within 14 days to adjust their residency status or exit the country.¹²

Specific Statutes of Limitations

The time limits for filing labor complaints are strictly regulated ²:

- **General Labor Claims:** Under the amendments of Federal Decree-Law No. 9 of 2024, the statute of limitations for filing any claims arising from a private-sector employment relationship is two years from the date the labor relationship was terminated.² Claims submitted after this 24-month window are legally time-barred and will not be heard by MOHRE or the courts.²
- **Administrative Infraction Complaints:** Complaints regarding specific contract breaches or operational disputes during active employment must be submitted to MOHRE within 30 days of the occurrence of the alleged breach.³⁶
- **Domestic Worker Absconding Reports:** Domestic workers who leave their workplace without their employer's knowledge must file a labor complaint within 48 hours of

departure to protect their legal status.¹² Conversely, employers of domestic workers must register an official report of absence within five days of the worker's departure.¹²

4. Judicial Labor Adjudication and Court-Level Procedures

Once a dispute exceeds AED 50,000 and is referred by MOHRE, it enters the jurisdiction of the federal or local judicial departments.³⁸ Under the reforms of Federal Decree-Law No. 9 of 2024, all labor disputes, grievances, and appeals against MOHRE decisions are handled by the Court of First Instance rather than the Court of Appeal to accelerate resolution timelines.²

Court Registration Prerequisites and Fee Exemptions

To initiate a lawsuit in the Labor Court, the plaintiff must submit the petition through the court's online portal or an authorized typing center.⁴⁴ In line with the UAE's commitment to worker protection, all labor cases filed by workers (or their legal heirs) claiming dues arising from the employment relationship are exempt from judicial fees throughout all stages of litigation, including the first instance, appeal, and enforcement phases, provided the total claim value does not exceed AED 100,000.¹³ For claims exceeding AED 100,000, court fees of approximately AED 500 to 1,000 are levied, which may be recovered from the employer if the worker wins the case.³³

The registration procedures, service codes, and filing requirements for the judicial stage are governed by the Abu Dhabi Judicial Department (ADJD) Registration Services Guidebook (2023, Version 3).⁴⁴ The complete services guide is available for download at(https://www.adjd.gov.ae/AR/Documents/%D8%AF%D9%84%D9%8A%D9%84_%D8%AE%D8%AF%D9%85%D8%A7%D8%AA_%D8%A7%D9%84%D9%82%D9%8I%D8%AFEng.pdf).⁴⁴

This manual outlines the specific service codes used to file cases and appeals in the labor sector.⁴⁴

ADJD Service Code	Service Classification & Description	Required Documents & Forms	Prescribed Service Fees
ADJD0001	Request to Open a Mediation File: Presents civil or commercial labor disputes before the Reconciliation Centre. ⁴⁴	Emirates ID, Power of Attorney (if proxy), ADR Claim Form (ADJD-ADR-01). ⁴⁴	AED 500 security deposit; AED 300 notice fee per defendant. ⁴⁴
ADJD0005	Request to File	Emirates ID,	Exempt for workers;

	Personal Status (Money) Claim: Handles disputes over minors' or deceased workers' remaining funds. ⁴⁴	inheritance notice, proof of Left Assets. ⁴⁴	standard civil fees apply for employers. ⁴⁴
ADJD0015	Request to File an Interim Order: Seeks urgent ex-parte decisions to prevent loss of rights before main trial. ⁴⁴	Emirates ID, proof of urgency, Interim Order Form. ⁴⁴	AED 300 filing fee (exempt for workers under AED 100,000). ⁴⁴
ADJD0019	Request to File a Petition for Review: Reviews final, unappealable judgments under Article 171 CPC. ⁴⁴	Emirates ID, copy of final judgment, Petition for Review Form. ⁴⁴	AED 1,000 filing fee; AED 500 security deposit. ⁴⁴
ADJD0046	Objection to an Interim Order: Files an objection against an urgent interim order issued by the court. ⁴⁴	Emirates ID, objection form, copy of the contested interim order. ⁴⁴	AED 50 filing fee; AED 300 notice fee per defendant. ⁴⁴

The Judicial Process and Case Management

Following registration, the lawsuit undergoes a structured case management process.⁴⁶ The official steps and rights of the worker after filing are detailed in the ADJD Labor Court Information Guide, which is available directly at(<https://www.adjd.gov.ae/AR/Documents/information.pdf>).⁴⁶ The statutory Q&A reference for workers is also hosted at(<https://www.adjd.gov.ae/AR/Documents/new%20labour%20law.pdf>).²⁴

1. **Case Management:** The court registers the case and schedules an initial online session with a Case Manager.⁴⁶ This session, conducted via video conferencing, is mandatory.⁴⁶ The Case Manager reviews the petition, clarifies the disputed amounts, and ensures all supporting documents are translated into Arabic by a certified Ministry of Justice translation office.⁴⁴
2. **First Hearing:** Once the file is complete, the Case Manager refers it to the competent

minor or major chamber of the Court of First Instance.⁴⁷ The first hearing is typically scheduled within two to four weeks of court registration.³³ Both parties are notified of the hearing date via automated SMS and email.⁴⁶

3. **Expert Appointment:** In complex salary disputes or final settlement calculations, the judge may appoint an independent accounting or labor expert to review the company's payroll accounts.⁴⁶ The fee for this expert must be paid by the claimant as a deposit (recoverable upon winning), though low-income workers can request assistance or fee waivers from the Court's Legal Aid Office.⁴⁶
4. **Judgment and Enforcement:** Once the judge reviews the evidence and the expert's report, they issue a final judgment.⁴⁵ If the judgment is not appealed within 30 days (for claims above AED 50,000), it becomes final and enforceable.¹³ The worker must then submit a request to the court's Enforcement Division to execute the judgment.⁴⁶ This division coordinates the seizure of corporate assets or bank accounts to recover the worker's dues.¹³

Under the amendments introduced by Federal Decree-Law No. 9 of 2024, employers are required to continue paying the worker's salary (for up to two months) during the litigation period if the dispute led to the suspension of work, preventing workers from being left without income during extended trials.⁴⁸

5. Exact Form Structure and Data Fields for Labor Filings

To facilitate the development of automated guidance systems, this section provides the data structures, file formats, and templates used in UAE labor procedures.

MOHRE Individual Labor Complaint Form Structure

The online filing system at MOHRE maps the worker's input directly into its electronic database.³⁸ When building a guidance application, the digital forms must capture and validate the following fields³⁸:

Field 1.1: Applicant Category	>[36-49]
Field 1.2: Emirates ID Number	
Field 1.3: Mobile Number	
Field 1.4: Email Address	>[33-38]
Field 2.1: Work Permit Number	

Field 2.2 Establishment Card #
Field 2.3 Current Status
Field 2.4 Basic Wage (Contract)

Field 3.1 Complaint Primary Category [33-40]
Field 3.2 Period of Non-Payment [39]
Field 3.3 Total Claim Value
Field 3.4 Supporting Documents

Step-by-Step Population and Submission Rules

- Validation Rule 1:* The system must check the Emirates ID against the state population registry via UAE Pass.³⁸
- Validation Rule 2:* If the calculated Total Claim Value is $\leq$ AED 50,000, the form must display a disclaimer notifying the worker that MOHRE's subsequent decision is final and legally binding.³⁸
- Validation Rule 3:* If the Applicant Category is set to "Domestic Worker," the system must apply a 48-hour filing limit if the worker is reporting work abandonment.¹²

ADJD Court Petition Form (Civil/Labor Claim)

When registering a case file under service code ADJD0001 or registering a direct claim after receiving a MOHRE NOC, the ADJD portal requires a structured court petition⁴⁴:

Court Petition Data Map (ADJD-LP-01)
[Redacted]
[Redacted]
[Redacted]
Full Legal Name (Arabic/English) [As printed in
Passport] [39]
Residential Address / Domicile [Physical
Address in UAE]
Contact Number & Email
Legal Representative / Advocate Name [If represented,
requires POA]

Registered Corporate Name (Arabic/English) _____ [39]
Registered Office Address / Domicile: _____ [Corporate
Headquarters]
Trade License Number & Establishment ID: _____

MOHRE Referral Case Number _____
Date of MOHRE Referral (NOC): _____ [Must be
within prior 14 days]
Total Litigation Claim Value: _____

Date-Based Narrative _____ [39]
Detailed Remedy Itemization _____ [39]
Statutory Reference Articles _____ [e.g., Article
51 for Gratuity]

Verification Protocols

The court system validates the petition against the MOHRE database.⁴⁵ If the referral date entered in Block 3 exceeds 14 calendar days from the date of petition submission, the system automatically rejects the application, citing a statutory procedural breach.³⁸

SIF (Salary Information File) Upload Format

Under WPS regulations, employers must compile and upload their payroll data using a structured Salary Information File (SIF).²⁶ This is a comma-separated values (CSV) or text file containing two distinct types of records: the Header Record (single line) and the Employee Record (multiple lines, one per employee).²⁶

SIF Header Record Structure

The header record contains administrative metadata for the payroll cycle ²⁶:

Header Format: , [Agent Code],,,,,

- Establishment ID: 13-digit MOHRE establishment identifier (e.g., 7001234567890).²⁶
- Agent Code: 9-digit routing code of the bank or exchange house (e.g., 900112233).²⁶
- File Creation Date: Date the file was compiled, in YYYY-MM-DD format (e.g., 2026-06-01).²⁶
- Start Date: Start date of the pay period (e.g., 2026-05-01).²⁶

- End Date: End date of the pay period (e.g., 2026-05-31).²⁶
- Total Records: Total count of employee lines contained in the file (e.g., 12).
- Total Salary Sum: Sum of all net salaries paid in the cycle, to two decimal places (e.g., 72450.00).²⁶

SIF Employee Record Structure

Each employee record must populate the following consecutive fields ²⁶:

Employee Format: ,, [Allowances],,, [Currency],

- Work Permit #: 14-digit MOHRE work permit/labor card number (e.g., 12345678901234).²⁶
- UID: 9-digit personal identification number (Unified ID).²⁶
- Basic Salary: Agreed basic monthly wage in AED (e.g., 4500.00).⁵
- Allowances: Combined sum of housing, transport, and other allowances (e.g., 1500.00).¹⁰
- Deductions: Any lawful salary deductions made under Article 25 (e.g., 500.00).²⁶
- Net Salary: Calculated net pay, which must satisfy

$$Net = Basic + Allowances - Deductions$$
(e.g., 5500.00).²⁶
- Currency: Standard three-letter code, strictly AED for mainland WPS.¹
- IBAN: The unique 23-character International Bank Account Number of the worker (e.g., AE010030000012345678901).²⁶

6. Strategic System Design Recommendations

When developing an automated legal guidance system for workers in the UAE, the system architecture must adapt to several technical and regulatory challenges.

Real-Time SIF and SIF Error Verification

The guidance system should feature a SIF parser that allows users to upload their SIF .txt or .csv files to check for formatting or compliance errors before submitting them to their banks or WPS agents.²⁶ The parser should instantly flag common SIF errors, such as:

- *Inconsistent Net Salaries*: Flagging records where the net salary does not match the basic salary plus allowances minus deductions.²⁶
- *Insufficient Wages*: Identifying if the net payment is below the 85% compliance threshold, which would trigger automated MOHRE permit freezes on Day 5.²⁸
- *Formatting Discrepancies*: Ensuring the Unified ID (UID) contains exactly 9 digits and the MOHRE Work Permit number contains exactly 14 digits.²⁶

Multi-Jurisdictional Routing Logic

Because employment laws in the UAE vary by jurisdiction, the platform should implement a routing algorithm based on the user's visa and contract type.¹³ If a user inputs an establishment

license issued by a free zone like the DIFC or ADGM, the system must bypass the MOHRE administrative workflow and route the user directly to the appropriate free zone authority's tribunal (e.g., the DIFC Small Claims Tribunal or ADGM Courts).¹³ Conversely, mainland private-sector workers should be strictly guided through the mandatory MOHRE mediation process.¹³

Automated Calculators for Gratuity and Leave

The system should incorporate automated calculators that compute statutory entitlements based on the user's employment pattern.⁵ For example, the gratuity calculator should run the standard 21-day and 30-day formulas, accounting for any pro-rata calculations for partial years of service.⁴ For part-time workers, the calculator must first convert the total hours worked per year into equivalent working days ($8 \text{ hours} = 1 \text{ day}$) before applying the pro-rated gratuity.⁵

Strict 14-Day Court Filing Alerts

The platform should include automated notification workflows, such as SMS or email alerts, to remind users of critical deadlines.³⁸ Specifically, once a user logs that they have received a MOHRE referral letter (NOC) due to failed mediation, the system must trigger a countdown alert warning them that they must file their lawsuit with the Labor Court within 14 calendar days, or the referral will expire.³⁸ Similar alerts should be configured for appealing MOHRE's binding decisions ($\leq$ AED 50,000) within 15 working days.²

Works cited

1. Federal Decree Law No. 33 of 2021: Comprehensive Insights into MOHRE Labour Law and Its Transformative Impact on UAE Private Sector Employment, accessed June 22, 2026, <https://uaeahead.com/federal-decree-law-33-2021-mohre-labour-law/>
2. Federal Decree-Law No. (9/2024) amending some provisions of Federal Decree-Law No. (33/2021) regulating labour relations - ME-Alliance, accessed June 22, 2026, <https://me-alliance.com/federal-decree-law-no-9-2024/>
3. Federal Decree-Law No. (33) of 2021 - DubaiHires.com, accessed June 22, 2026, <https://dubai hires.com/wp-content/uploads/2025/01/Federal-Decree-Law-No.-33-of-2021-Regarding-the-Regulation-of-Employment-Relationship-and-its-amendments-1.pdf>
4. Federal Decree Law No. 33 of 2021 – regulation of labour relations in private sector, accessed June 22, 2026, <https://www.kisser.legal/news/federal-decree-law-no-33-of-2021-regulation-of-labour-relations-in-private-sector/>
5. UAE Labour Law Guide – Probation, Termination Notice, End-of-Service Benefits, Annual Leave, Contracts and Part-Time Work Explained, accessed June 22, 2026, <https://uaeahead.com/uae-labour-law-pdf-guide/>

6. Cabinet Resolution No. (1) of 2022 Concerning the Executive Regulations of Federal Decree-Law No. (33) of 2021 Regulating Labour, accessed June 22, 2026, <https://uaelegislation.gov.ae/en/legislations/1547/download>
7. UAE Labour Law: The Essential 2025 Guide to Latest Employment Regulations and Compliance - ProConsult Advocates & Legal Consultants, accessed June 22, 2026, <https://uaeahead.com/uae-labour-law-pdf-guide-2025/>
8. REGULATORY FRAMEWORK GOVERNING MIGRANT WORKERS 1 - International Labour Organization, accessed June 22, 2026, https://www.ilo.org/sites/default/files/2024-05/UAE_Brief_Revised%20%28May%2024%29.pdf
9. The-UAEs-2024-Labor-Law-Amendments.pdf, accessed June 22, 2026, <https://ijlmh.com/wp-content/uploads/The-UAEs-2024-Labor-Law-Amendments.pdf>
10. Federal Decree by Law No. (33) of 2021 Regulating Labor Relations, accessed June 22, 2026, <https://uaelegislation.gov.ae/en/legislations/1541/download>
11. ADMINISTRATIVE RESOLUTION NO. 11 OF 2023 ON THE OPERATIONAL MANUAL FOR THE IMPLEMENTATION OF MINISTERIAL RESOLUTION NO. 676 OF 2, accessed June 22, 2026, <https://gulfmigration.grc.net/wp-content/uploads/2023/07/Administrative-Resolution-No.-11-of-2023.pdf>
12. Minister of Human Resources and Emiratization Having perused: Federal Law No. (1) of 1972 on the competencies of the Minis, accessed June 22, 2026, <https://assets.u.ae/api/public/content/e33bf2e4c4ae46c7ad41606663d82bcc?v=b8feae2f>
13. Labour Dispute in Dubai: How to Resolve a Workplace Dispute - Dubai South Business Hub, accessed June 22, 2026, <https://dubaisouthbh.com/blogs/labour-dispute-dubai>
14. United Arab Emirates - Squarespace, accessed June 22, 2026, https://static1.squarespace.com/static/5aa2d2d82971141ff9a61ea5/t/5d67c0d3e0d479000199f267/1567080665024/Country-Fact-Sheets_UAE.pdf
15. United Arab Emirates | Getting the Deal Through – Labour & Employment 2023 - Morgan Lewis, accessed June 22, 2026, <https://www.morganlewis.com/%22/-/media/files/special-topics/gtdt/2023/getting-the-deal-through-labour-employment-2023-uae.pdf>
16. Federal Law 33 of 2021 – The “Labour Law” Summary, accessed June 22, 2026, <https://dda.gov.ae/-/media/218BD60807934D8F888B472B2FDB78E7.pdf>
17. Federal Decree-Law Regarding the Regulation of, accessed June 22, 2026, <https://assets.u.ae/api/public/content/eb65a60bbff949fa912eddd566613014?v=7174ed78>
18. worker welfare & rights in the uae, accessed June 22, 2026, <https://www.mofaic.gov.ae/api/features/OpenData/Download?id={29D1BB4F-0CC7-4C2D-9F27-595CFE0D372F}&Name=Worker+Welfare+in+the+UAE+>
19. United Arab Emirates: Employment and Labour Law - Legal 500 Country Comparative Guides 2026, accessed June 22, 2026, <https://www.legal500.com/guides/chapter/uae-employment-and-labour-law/?export>

-pdf

20. LABOUR & EMPLOYMENT 2022 - Morgan Lewis, accessed June 22, 2026, <https://www.morganlewis.com/-/media/files/special-topics/gtdt/2022/getting-the-deal-through-labour-employment-2022-uae.pdf>
21. UAE Employment Guide - K&L Gates, accessed June 22, 2026, https://files.klgates.com/webfiles/UAE_Employer_Guide.pdf
22. Memorandum of Understanding between the Government of the United Arab Emirates and the Government of the Republic of India on Cooperation in the Field of Manpower, accessed June 22, 2026, https://www.mea.gov.in/images/amb1/India_UAE_MoU.pdf
23. Federal Decree Law No 33 of 2021 (1).pdf, accessed June 22, 2026, <https://www.slideshare.net/slideshow/federal-decreelaw-no-33-of-2021-1pdf/251954733>
24. Frequently Asked Questions About the New Labour Law - دائرة القضاء, accessed June 22, 2026, <https://www.adjd.gov.ae/AR/Documents/new%20labour%20law.pdf>
25. Cabinet Resolution № 1 of 2022 | UAE Legal Notes, accessed June 22, 2026, <https://uae.shushin.io/labourlaw/Cabinet-Resolution-1-of-2022>
26. WPS in UAE: The Complete Guide to Wage Protection System Compliance (2026), accessed June 22, 2026, <https://www.fit.ae/news-and-blogs/wps-uae-complete-guide>
27. How to Register for Wage Protection System (WPS) in UAE: Process Manual for Employers, accessed June 22, 2026, <https://skrooge.ai/blog/how-to-register-for-wage-protection-system-uae/>
28. UAE Introduces New Wage Protection System Resolution Effective 1 June 2026, accessed June 22, 2026, <https://www.morganlewis.com/pubs/2026/05/uae-introduces-new-wage-protection-system-resolution-effective-1-june-2026>
29. UAE Introduces Major Changes to the Wage Protection System: What Employers Need to Know - Lexis® Middle East, accessed June 22, 2026, https://www.lexismiddleeast.com/eJournal/2026-06-17_53/en
30. UAE's New Wage Protection System Rules, accessed June 22, 2026, <https://tsac-uae.com/uaes-new-wage-protection-system-rules/>
31. UNITED ARAB EMIRATES MINISTRY OF HUMAN RESOURCES & EMIRATISATION OFFICE OF THE MINISTER Ministerial Resolution No. (0340) of - ジェトロ, accessed June 22, 2026, https://www.jetro.go.jp/view_interface.php?blockId=41315702
32. Ministerial Decision No. 340/2026 Concerning the Wage Protection System, accessed June 22, 2026, https://www.lexismiddleeast.com/law/UnitedArabEmirates/MinisterialDecision_340_2026/en
33. UAE MOHRE Complaint Guide: Filing Labor Disputes 2026 - NeuralHR.AI, accessed June 22, 2026, <https://neuralhr.ai/en/resources/dispute-resolution/mohre-complaint>
34. Resolution No.(25) Of 2022 Concerning The Procedures Manual Regulating Labor Disputes And Complaints, accessed June 22, 2026,

<https://gulfmigration.grc.net/wp-content/uploads/2023/01/Resolution-No.25-Of-2022-Concerning-The-Procedures-Manual-Regulating-Labor-Disputes-And-Complaints.pdf>

35. UAE; Administrative Resolution (25 Of 2022) Related to Labor Disputes and Complaints, accessed June 22, 2026, <https://gulfmigration.grc.net/uae-administrative-resolution-25-of-2022-related-to-labor-disputes-and-complaints/?print=pdf>
36. MOHRE Labour Complaint Process in the UAE - EGSH, accessed June 22, 2026, <https://egsh.ae/insights/mohre-complaint-process>
37. Ministerial Resolution No. (47) of 2022 Regarding, accessed June 22, 2026, <https://assets.u.ae/api/public/content/4f1ea7bca41946f49540ad7138b18845?v=659ba9ac>
38. MOHRE Complaint for Unpaid Salary: Process & Escalation 2026 - UAE Experts HUB, accessed June 22, 2026, <https://www.uaeexpertshub.com/mohre-complaint-unpaid-salary-uae/>
39. MOHRE Labour Complaint: How To File & Documents Checklist | Al Ramsy Advocates, accessed June 22, 2026, <https://alramsyadvocates.com/mohre-labour-complaint/>
40. How to File & Track MOHRE Complaint Status in UAE - Property Finder, accessed June 22, 2026, <https://www.propertyfinder.ae/blog/mohre-complaint/>
41. judicial department - دائرة القضاء, accessed June 22, 2026, <https://www.adjd.gov.ae/sites/Authoring/EN/PublishingImages/Lists/News/AdminView/Administrative%20Decision%20No%2060%20of%202020%20Adopting%20the%20Continuity%20Procedures%20of%20the%20Judicial%20and%20Notary%20Public%20Services%20During%20Coronavirus%20Crisis.pdf>
42. This is not an official translation Ministerial Decree No. (46) of 2022 Regarding Work Permits, Job Offers and Employment Con, accessed June 22, 2026, <https://assets.u.ae/api/public/content/648865a079b942039357bbc69a8523e8?v=6ce4da49>
43. Article 44 UAE Labour Law: Summary Dismissal, Procedural Safeguards, and Employee Rights in the UAE - ProConsult Advocates & Legal Consultants, accessed June 22, 2026, <https://uaeahead.com/article-44-uae-labour-law-summary-dismissal-2/>
44. Guidance Manual, accessed June 22, 2026, https://www.adjd.gov.ae/AR/Documents/%D8%AF%D9%84%D9%8A%D9%84_%D8%AE%D8%AF%D9%85%D8%A7%D8%AA_%D8%A7%D9%84%D9%82%D9%8A%D8%AFEng.pdf
45. Case Procedures - Abu Dhabi, accessed June 22, 2026, <https://www.adjd.gov.ae/sites/eServices/EN/Pages/CaseProcedures.aspx>
46. Information for a Worker after filing a claim with the - Abu Dhabi Judicial Department's Labour Court - دائرة القضاء, accessed June 22, 2026, <https://www.adjd.gov.ae/AR/Documents/information.pdf>
47. Abu Dhabi Labour Court, accessed June 22, 2026, <https://www.adjd.gov.ae/en/pages/courts/abu-dhabi-labour-court.aspx>
48. CORPORATE GOVERNANCE - ICSI, accessed June 22, 2026,

https://www.icsi.edu/media/webmodules/CG_Volume_08_18062025.pdf

49. Wage Protection System User Manual, accessed June 22, 2026,

[https://lmra.gov.bh/files/cms/shared/wps-user-manual-eng%20\(1\).pdf](https://lmra.gov.bh/files/cms/shared/wps-user-manual-eng%20(1).pdf)